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File No: EXP202400240

RESOLUTION OF TERMINATION OF THE PROCEDURE DUE TO VOLUNTARY PAYMENT

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On April 29, 2024, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against HEADBLUE MARKETING, S.L. (hereinafter, the respondent), through the Agreement that is transcribed:

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File No: EXP202400240

AGREEMENT TO INITIATE SANCTIONING PROCEEDINGS

From the actions taken by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection on November 28, 2023. The complaint is directed against HEADBLUE MARKETING, S.L. with NIF B67579409 (hereinafter, the respondent). The reasons for the complaint are as follows: Receipt of unsolicited and unconsented commercial electronic communications at their email address ***EMAIL.1. They state that they have not been a client of the sending entity (respondent) nor has there been prior contact. They also indicate that there has been no response to the access requests sent on 10/26/2023 and 11/23/2023.

Along with the complaint, the following emails sent to the complainant's address are provided:

- Email sent on May 25, 2023, at 16:51 hours

From: ***EMAIL.2

To: ***EMAIL.1

Subject: Your digital kit expires soon

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"I am writing regarding your Digital Kit expiring on 06/02/2023. I see that you have not yet allocated the amount of the Kit. We are a digitalization company with extensive experience in Digital Kit and we offer services such as Web, Positioning, Social Networks, CRM, ERP... among others. We are fast, we provide personalized attention, and we have excellent service. I know you are short on time, so in 20 seconds I will explain the services..."

- Email sent on May 29, 2023, at 14:34 hours

From: ***EMAIL.2

To: ***EMAIL.1

Subject: Re: Your digital kit expires soon

"I wanted to remind you that your kit expires on 06/02/2023 and you will not be able to access the €12,000 that has been granted to you. Fortunately, we can help you and process it before your Digital Kit expires with our Marketing and Development services. We have already signed more than 100 agreements. We work in the best way and provide the best service. Remember that you do not have to pay anything! (it is subsidized) I remind you of the services:..."

- Email sent on May 31, 2023, at 11:30 hours

From: ***EMAIL.2

To: ***EMAIL.1

Subject: Use your €12,000 from the Digital Kit without paying anything

"Good afternoon, it's XXXX again. Sorry for my insistence, if you are interested in allocating your

€12,000 from the Digital Kit, I am open to talking with you. Here is my WhatsApp +34 ***PHONE.1”

- Email sent on June 1, 2023, at 09:16 hours

From: ***EMAIL.2

To: ***EMAIL.1

Subject: I have no response regarding your Digital Kit - CONSULTING AND PHARMACEUTICAL AND FOOD INSTALLATIONS S.L.U

“I have not received any response regarding your Digital Kit. I make it very easy for you, just respond with a number. 1 - I don't have time, but I am interested. (I will call you at any moment) 2 - I am 100% interested. 3 - I prefer to talk by phone, will you call me? 4 - I do not want to spend the Kit (You lose the amount of €12,000) 5 - I am not interested at all.”

- Email sent on November 23, 2023, at 09:28 hours

From: ***EMAIL.2

To: ***EMAIL.1

Subject: Regarding your Digital Kit

“Hello! Regarding your company's Digital Kit, I have noticed that it expires on 12/02/2023 and you have not been able to make use of the total €2,000 that corresponds to you. I would like to know if I can help you make use of the digital Kit in:

Website Positioning your website on Google Social Networks Systems of

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Business Management

Others

As I mentioned, since it expires on 02/12/2023, it is better that we get it started so you can take advantage of your Digital Kit. "We are in touch."

Likewise, the emails sent by the claimant to the respondent requesting to know how their data was obtained are provided. They are listed below:

- Email sent on October 26, 2023, at 21:08 hours

From: ***EMAIL.1

To: ***EMAIL.2

"Good evening, I request that you inform me of the means by which you obtained my data and the information regarding my digital kit. If I do not receive a response by next Tuesday, I will initiate proceedings before the Spanish Agency for Data Protection. Best regards."

- Email sent on November 23, 2023, at 9:46 hours

From: ***EMAIL.1

To: ***EMAIL.2

"I request that you inform me of the means by which you obtained my data and the information regarding my digital kit. If I do not receive a response, I will initiate proceedings before the Spanish Agency for Data Protection. Best regards."

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), this complaint was forwarded to the respondent, so that they could analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in the data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was recorded on 11/01/2024 as evidenced by the acknowledgment of receipt in the file.

On 07/02/2024, this Agency received a written response indicating the following:

"On November 29, 2023, XXXXX, on behalf of HEADBLUE as their legal advisors, sent a response

letter to this user addressing their request to exercise their right of access and complying with the obligations established in the applicable data protection regulations in this regard.

As DOCUMENT No. 1, the response email dated November 29 is provided along with the response letter that was attached, through which compliance with the request to exercise the right of access by this user was fulfilled, explaining the means that HEADBLUE had used to collect the data, the purpose for which they intended to process that data, and confirming to them that their data had already been deleted from the database owned by HEADBLUE immediately.

On December 6, 2023, we sent another response email to the email received from this user dated November 29, 2023, informing them of the following...

... HEADBLUE has developed, in parallel to its activity, a tool capable of extracting databases from the Internet environment that have requested subsidies for the implementation of the Digital Kit or any other services related to this concept. In this way, thanks to this tool, HEADBLUE is able to identify self-employed users/companies that may need or be interested in contracting these Digital Kit implementation services based on a prior request they have made regarding the available subsidies aimed at digitizing companies or organizations.

In this regard, it is important to note that HEADBLUE's purpose is not to send indiscriminate commercial communications to any Internet user, but rather to send commercial communications to users who are interested in these services solely for the purpose of establishing a commercial and professional relationship with them in accordance with Article 19 of the LOPDGDD and Article 6.1.f) regarding the legitimate interest basis. In any case, their data has already been deleted from our database, and we will not contact them again to offer our services.

In this regard, and concerning this user ***EMAIL.1, HEADBLUE was aware that, although it was a Gmail account, this email address was of a professional nature since, before sending any commercial communication outlining its services to this user and offering to initiate a commercial relationship between the parties, HEADBLUE investigated whether it could indeed use this email under the legitimate interest provision set forth in Article 19 of the LOPDGDD and Article 6.1.f) of the GDPR. Specifically, HEADBLUE ensured this by searching for this user's profile on LinkedIn and confirming that they were the representative of the company Consultoría e Instalaciones Farmacéuticas y Alimentarias S.L.U."

Along with the written response, the cited emails sent from the address ***EMAIL.3 on behalf of the respondent on November 29 and December 6, 2023, and the response emails from the claimant dated November 29 and December 6 are provided.

THIRD: On February 28, 2024, in accordance with Article 65 of the LOPDGDD, the complaint submitted by the claimant was admitted for processing.

LEGAL GROUNDS

I

Competence

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In accordance with the provisions established in Article 43.1 of Law 34/2002, of July 11, on information society services and electronic commerce (hereinafter LSSI) and as provided in Articles 47, 48.1, 64.2, and 68.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, as long as they do not contradict

them, subsidiarily by the general rules on administrative procedures."

Finally, the Fourth Additional Provision "Procedure in relation to the competencies attributed to the Spanish Agency for Data Protection by other laws" establishes that: "The provisions in Title VIII and its development regulations shall apply to the procedures that the Spanish Agency for Data Protection must process in the exercise of the competencies attributed to it by other laws."

II

Prohibition of commercial communications made via email or equivalent electronic communication means

Currently, "spam" refers to all types of unsolicited communication made electronically. Thus, "spam" is understood to be any unsolicited message that typically aims to offer, market, or attempt to awaken interest regarding a product, service, or company. Although it can be done through various means, the most commonly used is email.

This conduct is particularly serious when carried out en masse. The sending of commercial messages without prior consent is prohibited by Spanish legislation.

The low cost of sending emails via the Internet or through mobile telephony (SMS and MMS), its possible anonymity, the speed with which it reaches recipients, and the possibilities it offers in terms of transmission volume have allowed this practice to be carried out abusively and indiscriminately.

The LSSI, in its Article 21.1, expressly prohibits "the sending of advertising or promotional communications by email or other equivalent electronic communication means that have not been previously requested or expressly authorized by the recipients."

That is to say, commercial communications aimed at the direct or indirect promotion of the goods or services of a company, organization, or person engaged in commercial, industrial, artisanal, or professional activities are disallowed without the express consent of the recipient, although this prohibition finds its exception in paragraph 2 of the aforementioned Article 21, which authorizes the sending of commercial communications when "there is a prior contractual relationship, always...

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that the provider has lawfully obtained the contact details of the recipient and used them to send commercial communications regarding products or services of its own company that are similar to those initially contracted with the client." Thus, the sending of unsolicited commercial communications, outside the exceptional case of Article 21.2 of the LSSI, may constitute a minor or serious infringement of the LSSI.

In this regard, according to these regulations, consent must not only be prior, specific, and unequivocal, but also informed. This information must be complete and accurate regarding the sector of activity from which the recipient may receive advertising, with a warning about the right to refuse or withdraw consent. This information must be considered a necessary prerequisite to validate the expression of will of the affected party.

III

Prohibition of unsolicited or expressly authorized commercial communications

As already noted, the LSSI prohibits unsolicited or expressly authorized commercial communications, based on a concept of commercial communication that is classified as an information society service and defined in its Annex as follows:

"f) 'Commercial communication': any form of communication aimed at the promotion, directly or indirectly, of the image or of the goods or services of a company, organization, or person engaged in commercial, industrial, artisanal, or professional activity.

For the purposes of this Law, the data that allow direct access to the activity of a person, company, or organization, such as the domain name or email address, will not be considered commercial communication, nor will communications related to the goods, services, or image offered when they are produced by a third party and without economic consideration."

The concept of commercial communication, according to the definition included in Annex f), first

paragraph of the LSSI, encompasses all forms of communications intended to promote, directly or indirectly, goods, services, or the image of a company, organization, or person with a commercial, industrial, artisanal, or professional activity.

On the other hand, the LSSI in its Annex a) defines "Information Society Service" as "any service normally provided for a fee, at a distance, by electronic means, and at the individual request of the recipient.

The concept of information society service also includes services that are not paid for by their recipients, to the extent that they constitute an economic activity for the service provider."

The aforementioned section adds that the sending of commercial communications is an information society service, as long as it represents an economic activity.

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According to section d) of the aforementioned Annex, the recipient is the "natural or legal person who uses, whether or not for professional reasons, a service of the information society."

From the above, it can be inferred that when the commercial communication does not meet the requirements of the concept of Services of the Information Society, it loses its character as commercial communication. In this regard, the second paragraph of Annex f) of the LSSI states two cases that will not be considered commercial communication for the purposes of this Law. On one hand, the data that allows direct access to the activity of a person, company, or organization, such as the domain name or email address, and, on the other hand, communications related to goods, services, or the image offered when they are prepared by a third party and without economic compensation.

IV

Unfulfilled Obligation

Title VII of the LSSI under the heading "Infringements and Sanctions" contains the sanctioning regime applicable in the event that any of the infringements listed in the infringement table contained therein occur.

Specifically, Article 37 specifies that "providers of services of the information society are subject to the sanctioning regime established in this Title when this Law is applicable to them."

The definition of service provider is contained in section c) of the Annex of the aforementioned regulation, which considers as such the "natural or legal person who provides a service of the information society."

In this case, the claiming party claims for the sending of five unwanted commercial communications to their email address on the dates 25/5, 29/05, 31/05, 1/06, and 23/11 of 2023 despite not having given their consent, nor being in a prior contractual relationship.

On the dates 26/10 and 23/11 of 2023, the claiming party sent two emails to the claimed party, requesting information on where they obtained their data, and the claimed party responded on 29/11 and 6/12 of 2023 addressing the right of access and confirming the deletion of their data.

Regarding the commercial communications sent to the claiming party, the claimed party states that the basis for legitimization for data processing is legitimate interest, as these communications are not discriminated against, but have been directed only to those who have shown interest in the subsidies to obtain the digital kit; for this, they have used a tool that only selects on the internet those individuals or organizations that meet those characteristics. According to the claimed party, they send communications to corporate or professional email addresses.

The claimed party recounts their method of obtaining data on the internet and does not indicate that they will make any changes to their procedure. From their account, it can be inferred that they have not had and do not have the express consent of the claiming party; therefore, the sending of these communications is contrary to Article 21.1 of the LSSI, which establishes that there has been no prior contractual relationship between the parties that would have served to substantiate the legitimate interest invoked by the claimed party.

V

Classification of the Infringement

In accordance with the evidence available at this moment of the initiation of the sanctioning procedure, and without prejudice to what results from the instruction, it is considered that the claimed party has committed an infringement by sending unwanted commercial communications, despite not having given their consent, nor being in a prior contractual relationship.

The known facts could constitute an infringement, attributable to the claimed party, for violation of Article 21.1 of the LSSI, which states the following:

“1. The sending of advertising or promotional communications by email or other equivalent electronic communication means that have not previously been requested or expressly authorized by the recipients is prohibited.

2. The provisions of the previous section shall not apply when there is a prior contractual relationship, provided that the provider has lawfully obtained the contact details of the recipient and uses them to send commercial communications regarding products or services of their own company that are similar to those initially contracted with the client.

In any case, the provider must offer the recipient the possibility to oppose the processing of their data for promotional purposes through a simple and free procedure, both at the time of data collection and in each of the commercial communications sent to them.

When the communications have been sent by email, this means must necessarily consist of the inclusion of an email address or another valid electronic address where this right can be exercised, and the sending of communications that do not include such an address is prohibited.”

VI

Qualification of the Infringement

In accordance with the provisions of Article 38, in its sections 3 and 4 of the LSSI, the following are considered serious and minor infringements:

“3. Serious infringements are:

c) The mass sending of commercial communications by email or other equivalent electronic communication means, or its persistent or systematic sending to the same recipient of the service when such sending does not comply with the requirements established in Article 21.”

“4. Minor infringements:

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d) The sending of commercial communications by email or other equivalent electronic means when such communications do not comply with the requirements established in Article 21 and do not constitute a serious infringement.” Consequently, the aforementioned infringement of Article 21 of the LSSI, in the terms indicated by the cited Article 38.4.d), is generally classified as a minor infringement.

VII

Proposal for sanction

In accordance with the provisions of Article 39.1.c) of the LSSI, minor infringements may be sanctioned with a fine of up to €30,000, with the criteria for its graduation established in Article 40 of the same regulation, which states the following:

“The amount of the fines imposed shall be graduated according to the following criteria:

a) The existence of intent.

b) The period of time during which the infringement has been committed.

c) The recurrence of committing infringements of the same nature, when this has been declared by a firm resolution.

d) The nature and amount of the damages caused.

e) The benefits obtained from the infringement.

f) The volume of billing affected by the committed infringement.

g) Adherence to a code of conduct or an applicable self-regulation advertising system regarding the committed infringement, which complies with the provisions of Article 18 or in the eighth final provision

and has been favorably reported by the competent authority or authorities."

The balance of the circumstances considered, regarding the infringement committed by violating the provisions of Article 21 of the LSSI, allows for an initial assessment of a fine of €1,000 (one thousand euros).

Therefore, in light of the above, by the Director of the Spanish Agency for Data Protection,
IT IS AGREED:

FIRST: TO INITIATE SANCTIONING PROCEDURE against HEADBLUE MARKETING, S.L., with NIF B67579409, for the alleged infringement of Article 21.1 of the LSSI, classified in Article 38.4.d) of the LSSI.

SECOND: TO APPOINT B.B.B. as the instructor and C.C.C. as the secretary, indicating that they may be recused, if applicable, in accordance with the provisions of Articles 23 and 24 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector (LRJSP).

THIRD: TO INCORPORATE into the sanctioning file, for evidentiary purposes, the complaint filed by the complainant and its documentation, as well as the documents obtained and generated by the General Subdirectorate of Data Inspection in the proceedings prior to the initiation of this sanctioning procedure.

FOURTH: THAT for the purposes provided in Article 64.2 b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the sanction that may correspond would be for the alleged infringement of Article 21.1 of the LSSI, classified in Article 38.4.d) of that regulation, an administrative fine of €1,000.00, without prejudice to what results from the instruction.

FIFTH: TO NOTIFY this agreement to HEADBLUE MARKETING, S.L., with NIF B67579409, granting a hearing period of ten working days for it to submit allegations and present any evidence it deems appropriate. In its written allegations, it must provide its NIF and the file number that appears in the heading of this document.

If no allegations are made against this initiation agreement within the stipulated period, it may be considered a proposal for resolution, as established in Article 64.2.f) of Law 39/2015, of October 1, of the LPACAP.

In accordance with the provisions of Article 85 of the LPACAP, if the sanction to be imposed is a fine, it may acknowledge its responsibility within the period granted for the submission of allegations to this initiation agreement; this will entail a reduction of 20% of the sanction to be imposed in this procedure. With the application of this reduction, the sanction would be set at €800, resolving the procedure with the imposition of this sanction.

Similarly, it may, at any time prior to the resolution of this procedure, voluntarily pay the proposed sanction, which will imply a reduction of 20% of its amount. With the application of this reduction, the sanction would be set at €800, and its payment will imply the termination of the procedure.

The reduction for the voluntary payment of the sanction is cumulative with that which corresponds to the acknowledgment of responsibility, provided that this acknowledgment of responsibility is made within the period granted for submitting allegations to the opening of the procedure. The voluntary payment of the amount referred to in the previous paragraph may be made at any time prior to the resolution. In this case, if both reductions are applicable, the amount of the sanction would be set at €600.

In any case, the effectiveness of either of the two mentioned reductions will be conditioned upon the withdrawal or renunciation of any action or administrative appeal against the sanction.

In the event that it opts to proceed with the voluntary payment of either of the amounts indicated above, €800 or €600, it must do so by depositing it into account No. IBAN: ES00 0000 0000 0000 0000 0000 (BIC/SWIFT Code: XXXXXXXXXXXX) opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A., indicating in the concept the number of
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reference of the procedure that appears in the heading of this document and the reason for the

reduction of the amount to which it adheres.

Furthermore, you must send the proof of payment to the General Subdirectorate of Inspection to continue with the procedure in accordance with the amount paid.

The procedure will have a maximum duration of nine months from the date of the initiation agreement. If this period elapses without a resolution being issued and notified, it will expire, and consequently, the file will be archived; in accordance with the provisions of Article 43.2 of the LSSI.

Finally, it is noted that according to the provisions of Article 112.1 of the LPACAP, there is no administrative appeal against this act.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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SECOND: On May 9, 2024, the party being claimed has proceeded to pay the fine in the amount of 600 euros, making use of the two reductions provided for in the previously transcribed Initiation Agreement, which implies the acknowledgment of responsibility.

THIRD: The payment made, within the period granted to submit allegations regarding the opening of the procedure, entails the waiver of any action or administrative appeal against the fine and the acknowledgment of responsibility concerning the facts referred to in the Initiation Agreement.

LEGAL GROUNDS

I

Competence

In accordance with the provisions of Article 43.1 of Law 34/2002, of July 11, on Information Society Services and Electronic Commerce (hereinafter LSSI) and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection will be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

Finally, the Fourth Additional Provision "Procedure in relation to the powers attributed to the Spanish Agency for Data Protection by other laws" establishes that: "The provisions in Title VIII and its implementing rules shall apply to the procedures that the Spanish Agency for Data Protection must process in the exercise of the powers attributed to it by other laws."

II

Termination of the procedure

Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), under the heading "Termination in sanctioning procedures" provides as follows:

"1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility, the procedure may be resolved with the imposition of the appropriate sanction.

2. When the sanction is solely pecuniary or when it is possible to impose a pecuniary sanction and another non-pecuniary sanction but the impropriety of the latter has been justified, voluntary payment by the presumed responsible party, at any time prior to the resolution, will imply the termination of the procedure, except regarding the restoration of the altered situation or the determination of compensation for the damages caused by the commission of the infringement.

3. In both cases, when the sanction is solely pecuniary, the competent authority to resolve the procedure will apply reductions of at least 20% on the amount of the proposed sanction, which will be cumulative. The aforementioned reductions must be specified in the notification of initiation of the procedure, and their effectiveness will be conditioned on the withdrawal or waiver of any action or administrative appeal against the sanction. The percentage of reduction provided in this section may

be increased by regulation.”

In accordance with the above,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DECLARE the termination of procedure EXP202400240, in accordance with the provisions of Article 85 of the LPACAP.

SECOND: TO NOTIFY this resolution to HEADBLUE MARKETING, S.L.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the Fourth Additional Provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within a period of two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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